

1.	26CV0193	CHRISHANA FIELDS VS. EL DORADO HILLS FIRE
DEMURRER AND MOTION TO STRIKE		

This matter is before the Court on two motions filed by Defendants on April 27, 2026: 1) Demurrer; and 2) Motion to Strike.

DEMURRER

Pursuant to Code of Civil Procedure §§ 430.10(e) and 430.10(f), Defendants, El Dorado Hills Fire Department, Michael Lilienthal, and Dustin Hall (collectively “Defendants”), demurrer to Plaintiff, Christina Field’s “Plaintiff” First Amended Complaint (“FAC”). On May 19, 2026, Plaintiff filed an opposition. On May 29, 2026, Defendants filed a reply.

Meet and Confer Requirement

Code of Civil Procedure §430.41(a) provides: Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.

Code of Civil Procedure §430.41(a)(3):

The demurring party shall file and serve with the demurrer a declaration stating either of the following:

(A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer.

(B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.

Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal. App. 5th 348 (“If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort”).

Based on the Declaration of Mansour S. Chopan, counsel attempted to meet and confer with Plaintiff prior to filing, but the dispute could not be resolved.

Background

Plaintiff, Chrishana Fields (“Plaintiff”), filed a First Amended Complaint (“FAC”) on March 17, 2026, asserting the following causes of action: 1) 1. Discrimination Based on Gender (Cal. Gov’t Code § 12940(a)); 2) Discrimination Based on Race (Cal. Gov’t Code § 12940(a)); 3) Harassment (Cal. Gov’t Code § 12940(j)); 4) Retaliation for Engaging in Protected Activity (Cal. Gov’t Code § 12940(h)); 5) Failure to Prevent Discrimination, Harassment, and Retaliation (Cal. Gov’t Code § 12940(k)); and 6) Intentional Infliction of Emotional Distress.

Plaintiff asserts Defendants, El Dorado Hills Fire Department (“EDHFD”), Michael Lilienthal, and Dustin Hall, participated in a campaign of discrimination, harassment, and retaliation against Plaintiff who is the only sworn female chief officer at EDHFD, and a woman of color. Plaintiff alleges that Defendants systematically stripped Plaintiff of her authority, subjected her to disparate treatment, engaged in a pattern of humiliating and unfounded disciplinary actions, and retaliated against her for making a formal complaint for discrimination, harassment and retaliation. Defendants’ actions were designed to constructively demote and force her out of a career to which she has dedicated over two decades of her life.

Legal Principles

[A] demurrer challenges only the legal sufficiency of the complaint, not the truth or the accuracy of its factual allegations or the plaintiff’s ability to prove those allegations.” (*Amarel v. Connell* (1998) 202 Cal.App.3d 137, 140.) A demurrer is directed at the face of the complaint and to matters subject to judicial notice. (Code Civ. Proc., § 430.30, subd. (a).) All properly pleaded allegations of fact in the complaint are accepted as true, however improbable they may be, but not the contentions, deductions or conclusions of facts or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) A judge gives “the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Blank*, supra, 39 Cal.3d at p. 318.)

Discussion

1. First Cause of Action – FEHA Discrimination Based on Gender, Gov. Code § 12940(a) and Second Cause of Action – FEHA Discrimination Based on Race, Gov. Code § 12940(a) (against EDHFD)

Defendants argue Plaintiff’s First and Second Causes of Action in the FAC fail to plead materially adverse employment action and fail to plead ultimate facts supporting discriminatory motive beyond conclusions. In the alternative, Defendant’s argue they are uncertain under CCP § 430.10(f), as they do not clearly identify which alleged act is the actionable adverse employment action, when it occurred, and how it materially affected employment terms.

To state a prima facie case of gender, race, color, or sexual orientation discrimination under FEHA, a plaintiff must show that: “(1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an **adverse employment action** ... and (4) some other circumstance suggests **discriminatory motive**.” *Martin v. Board of Trustees of California State University* (2023) 97 Cal.App.5th 149, 161–162.

A special demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet. *Jacobson v. Oakland Meat & Packing Co.*, 161 Cal. 425, 433, 119 P. 653, Ann.Cas.1913B, 1194; *Jones v. Iverson*, 131 Cal. 101, 104, 63 P. 135; *Hurwitz v. Gross*, 5 Cal.App. 614, 617, 91 P. 109; 21 Cal.Jur. 102. A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made. *Callahan v. Broderick*, 124 Cal. 80, 83, 56 P. 782; *Brea v. McGlashan*, 3 Cal.App.2d 454, 39 P.2d 877; *Smith v. Hollander*, 85 Cal.App. 535, 542, 259 P. 958; *Butler v. Wyman*, 128 Cal.App. 736, 740, 18 P.2d 354. *People v. Lim* (1941) 18 Cal.2d 872, 882–883 [118 P.2d 472, 478].

The Court finds the FAC’s First and Second Causes of Action identify specific facts to support Plaintiff’s claims under Gov. Code § 12940(a). (FAC ¶¶ 16, 18(a)-(j), 24-26, 32-34, and 43-46). The Court further finds such claims are sufficiently clear and not uncertain. Defendants’ demurrer is overruled to the First and Second Causes of Action.

2. Third Cause of Action – FEHA Harassment/Hostile Work Environment, Gov Code § 12940(j) (against all Defendants)

Defendants argue Plaintiff’s Third Cause of Action describe personnel management activity and workplace oversight, not severe or pervasive harassment “because of” sex or race as a matter of law. In the alternative, Defendant’s argue they are uncertain under CCP § 430.10(f), as it does not plead dates for many “harassment” subparts, does not plead who communicated the “suppression qualified” criterion, who made what statements, and how particular actions are attributable to each defendant beyond conclusory group pleadings.

Gov. Code § 12940(j)(1) expressly makes it unlawful for an employer, labor organization, employment agency, or any other person, because of a protected characteristic, to harass an employee. To prevail on a harassment claim under FEHA, a plaintiff must produce evidence they were **subjected to “offensive comments or other abusive conduct”** that is (1) **based on a “protected characteristic”**... and (2) **“sufficiently severe or pervasive as to alter the conditions of [his] employment.”** (*Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 871, 172 Cal.Rptr.3d 732 (Serri).) To constitute

harassment, **the conduct must be so objectively severe or pervasive as “to create a hostile or abusive working environment.”** (*Id.* at p. 870, 172 Cal.Rptr.3d 732.) Factors to consider in this context include the frequency of the conduct, its severity, whether it is physically threatening or humiliating, and whether it unreasonably interferes with the employee's work performance. (*Ibid.*) *Doe v. Department of Corrections & Rehabilitation* (2019) 43 Cal.App.5th 721, 736 [255 Cal.Rptr.3d 910, 923] (emphasis added).

A special demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet. *Jacobson v. Oakland Meat & Packing Co.*, 161 Cal. 425, 433, 119 P. 653, Ann.Cas.1913B, 1194; *Jones v. Iverson*, 131 Cal. 101, 104, 63 P. 135; *Hurwitz v. Gross*, 5 Cal.App. 614, 617, 91 P. 109; 21 Cal.Jur. 102. A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made. *Callahan v. Broderick*, 124 Cal. 80, 83, 56 P. 782; *Brea v. McGlashan*, 3 Cal.App.2d 454, 39 P.2d 877; *Smith v. Hollander*, 85 Cal.App. 535, 542, 259 P. 958; *Butler v. Wyman*, 128 Cal.App. 736, 740, 18 P.2d 354. *People v. Lim* (1941) 18 Cal.2d 872, 882–883 [118 P.2d 472, 478].

The Court finds the FAC's Third Cause of Action identifies specific facts to support Plaintiff's claim under Gov. Code § 12940(j). (FAC ¶¶ 16, 18(a)-(j), 51-55). The Court further finds such claims are sufficiently clear and not uncertain. Defendants' demurrer is overruled to the Third Cause of Action.

3. Fourth Cause of Action – FEHA Retaliation, Gov. Code § 12940(h) (against EDHFD)

Defendants argue Plaintiff's Fourth Cause of Action fails to plead materially adverse action under FEHA retaliation standards and nonconclusory facts showing decisionmaker knowledge and causation. Additionally, Defendant's argue Plaintiff's Fourth Cause of Action is uncertain as to the alleged retaliatory acts, the decisionmakers, and the causal linkage to protected activity.

“The elements of a claim for retaliation in violation of [the FEHA], are: ‘(1) the employee's engagement in a protected activity ...; (2) retaliatory animus on the part of the employer; (3) an **adverse action by the employer**; (4) a **causal link between the retaliatory animus and the adverse action**; (5) damages; and (6) **causation.**’ ” (*Le Mere v. Los Angeles Unified School Dist.* (2019) 35 Cal.App.5th 237, 243, 247 Cal.Rptr.3d 76.) *Miller v. Department of Corrections & Rehabilitation* (2024) 105 Cal.App.5th 261, 285 [325 Cal.Rptr.3d 746, 766].

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A special demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet. *Jacobson v. Oakland Meat & Packing Co.*, 161 Cal. 425, 433, 119 P. 653, Ann.Cas.1913B, 1194; *Jones v. Iverson*, 131 Cal. 101, 104, 63 P. 135; *Hurwitz v. Gross*, 5 Cal.App. 614, 617, 91 P. 109; 21 Cal.Jur. 102. A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made. *Callahan v. Broderick*, 124 Cal. 80, 83, 56 P. 782; *Brea v. McGlashan*, 3 Cal.App.2d 454, 39 P.2d 877; *Smith v. Hollander*, 85 Cal.App. 535, 542, 259 P. 958; *Butler v. Wyman*, 128 Cal.App. 736, 740, 18 P.2d 354. *People v. Lim* (1941) 18 Cal.2d 872, 882–883 [118 P.2d 472, 478].

The Court finds FAC's Fourth Cause of Action identifies specific facts to support Plaintiff's claims under Gov. Code § 12940(h)). (FAC¶¶ 19-26, 61-65). The Court further finds such claims are sufficiently clear and not uncertain. Defendants' demurrer is overruled to the Fourth Cause of Action.

4. Fifth Cause of Action – Failure to Prevent Discrimination/Harassment/Retaliation, Gov. Code § 12940(k) (against EDHFD)

Defendants argue Plaintiff's Fifth Cause of Action fails because the underlying FEHA claims are not adequately pled. Additionally, Defendant's request a special demurrer if necessary.

As Plaintiff's FEHA claims have been determined to be adequately pled, Defendants' demurrer is overruled to the Fifth Cause of Action.

5. Sixth Cause of Action – Intentional Infliction of Emotional Distress (against Lilenthal and Hall)

Defendants argue Plaintiff's Sixth Cause of Action is barred pursuant to Gov. Code §§ 915, 945.4, and 950.2, as the FAC alleges that Plaintiff only submitted a government claim to the California Department of General Services, Office of Risk and Insurance Management. Defendants further assert discretionary-act immunity pursuant to Gov. Code § 820.2 shields public employees' policy/managerial choices and the district is vicariously immune under Gov. Code § 815.2(b). Defendants contend the workers' compensation exclusivity bars tort claims predicated on the "normal" incidents of the employment relationship. Lastly, Defendants assert IIED fails as a matter of law. To the extent necessary, Defendant's request a special demurrer.

Gov. Code § 945.4 provides

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Except as provided in Sections 946.4 and 946.6, no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of Part 3 of this division until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board, in accordance with Chapters 1 and 2 of Part 3 of this division.

Gov. Code § 915 requires (a) A claim, any amendment thereto, or an application to the public entity for leave to present a late claim shall be presented to a local public entity by any of the following means:

- (1) Delivering it to the clerk, secretary, or auditor thereof.
- (2) Mailing it to the clerk, secretary, auditor, or to the governing body at its principal office.
- (3) If expressly authorized by an ordinance or resolution of the public entity, submitting it electronically to the public entity in the manner specified in the ordinance or resolution.

Plaintiff's FAC is silent as to mailing the form to EDHFD, despite the proof of service indicating it was mailed simultaneously with the claim to the Government Claims Program. There is no mention of EDHFD's response, or lack thereof, within the FAC. For those reasons, Defendant's demurrer is sustained to the Sixth Cause of Action, with leave to amend. As Defendant's demurrer is sustained on this basis, the Court considers Defendant's remaining arguments moot.

MOTION TO STRIKE

Pursuant to Code of Civil Procedure §§ 435 and 436, Defendants, El Dorado Hills Fire Department, Michael Lilienthal, and Dustin Hall (collectively "Defendants"), move to strike specified portions of Plaintiff, Christina Field's "Plaintiff" First Amended Complaint filed April 27, 2026. On May 19, 2026, Plaintiff filed an opposition. On May 29, 2026 Defendants filed a reply.

Defendants move to strike the following portions of the FAC:

1. Paragraph 82 (FAC, p. 18, ¶ 82), beginning with "Because the conduct underlying this cause of action falls outside the scope of the individual defendants' employment, Government Code section 950.2 does not operate as a bar to this claim."
2. Paragraph 83 (FAC, p. 18, ¶ 83), beginning with "Plaintiff's claim for intentional infliction of emotional distress is not barred by the workers' compensation exclusivity doctrine," through the end of the paragraph.

3. Paragraph 84 (FAC, p. 18, ¶ 84), beginning with “Government Code § 820.2 does not shield the individual defendants from liability,” through the end of the paragraph.
4. Prayer paragraph (b) (FAC, p. 19, Prayer ¶ (b)) requesting the Court “Issue a judicial determination of the rights, duties, and obligations of the parties hereto,” because Plaintiff has not pleaded any declaratory relief cause of action and the prayer seeks relief not tethered to any pleaded claim.

Legal Principles

A motion to strike is generally used to address defects appearing on the face of a pleading that are not subject to demurrer. (*Pierson v. Sharp Memorial Hospital* (1989) 216 Cal.App.3d 340, 342.) “The court may, upon a motion [to strike] ..., or at any time in its discretion ... [¶] ... [s]trike out any irrelevant, false, or improper matter inserted in any pleading.” (Code Civ. Proc., § 436, subd. (a).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or from any matter which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).) On a motion to strike the trial court must read the complaint as a whole, considering all parts in their context, and must assume the truth of all well-pleaded allegations. (*Courtesy Ambulance*, supra, 8 Cal.App.4th at p. 1519.)

Discussion

1. Paragraph 82 (FAC, p. 18, ¶ 82), Paragraph 83 (FAC, p. 18, ¶ 83), and Paragraph 84 (FAC, p. 18, ¶ 84)

Defendants argue paragraphs 82-84 do not plead operative IIED facts but are instead argumentative conclusions asserting (i) “outside scope,” (ii) “not normal incident,” and (iii) “no discretionary immunity.” Defendants move to strike as improper matter under Code of Civil Procedure § 436.

As currently plead in FAC:

82. ...Because the conduct underlying this cause of action falls outside the scope of the individual defendants' employment, Government Code section 950.2 does not operate as a bar to this claim.

83. Plaintiff's claim for intentional infliction of emotional distress is not barred by the workers' compensation exclusivity doctrine. The conduct alleged herein which contains a sequence of sustained, malicious, and discriminatory personal campaign to humiliate and professionally destroy Plaintiff because of her sex and race is not a normal risk of the employment relationship and does not arise from the ordinary incidents of employment. Such intentional discriminatory and harassing conduct

falls outside the scope of workers' compensation exclusivity under Labor Code § 3600. (See *Accardi v. Superior Court* (1993) 17 Cal.App.4th 341.)

84. Government Code § 820.2 does not shield the individual defendants from liability for the conduct alleged herein. The individual defendants' actions were not basic policy decisions entitled to immunity but rather operational and personal acts of harassment, discrimination, and malicious targeting carried out for improper discriminatory and retaliatory purposes. Discretionary act immunity does not extend to conduct that is intentionally discriminatory, undertaken in bad faith, or designed to harm an employee on account of a protected characteristic.

Code of Civil Procedure § 436 authorizes the court to strike out any irrelevant, false, or improper matter inserted in any pleading, or to strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state.

The Court finds that although argumentative, FAC ¶ 82-84 are not irrelevant, false or improper as a matter of law. They are plead in anticipation of Defendants' affirmative defenses. Defendants' motion to strike FAC ¶ 82-84 is denied.

2. Prayer paragraph (b) (FAC, p. 19, Prayer ¶ (b))

Defendants argue Plaintiff's prayer seeking a free-standing "judicial determination" untethered to any pleaded cause of action is improper and should be stricken or clarified.

As currently plead in FAC:

b. Issue a judicial determination of the rights, duties, and obligations of the parties hereto;

Gov. Code § 12965(d) provides that a Court may grant "any relief a court is empowered to grant in a civil action brought pursuant to subdivision (c)" i.e., FEHA, "in addition to any other relief that, in the judgment of the court, will effectuate the purpose of this part." Plaintiffs seek equitable relief under FEHA and the prayer for relief is tied to the FEHA claims. Defendant's motion to strike prayer paragraph (b) is denied.

TENTATIVE RULING #1:

DEFENDANTS' DEMURRER IS OVERRULED AS TO FAC'S FIRST, SECOND, THIRD, FOURTH, FIFTH CAUSES OF ACTION. DEFENDANT'S DEMURRER IS SUSTAINED WITH LEAVE TO AMEND AS TO FAC'S SIXTH CAUSE OF ACTION.

DEFENDANTS' MOTION TO STRIKE IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.